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Tentative Ruling

Belina Louise Bolser v. Zuri Akida Murrell, M.D., et al., Case No. 26SMCV02744

436 Beverly Hills, LLC's Demurrer with Motion to Strike

Hearing Date: September 10, 2026

Background

Plaintiff Belina Louise Bolser sues Defendants Zuri A. Murrell, M.D. and 436 Beverly Hills, LLC d/b/a 436 Beverly Hills Surgery Center for (1) professional negligence; (2) lack of informed consent; (3) medical battery; (4) intentional misrepresentation/fraud ; (5) fraudulent concealment; (6) breach of fiduciary duty; (7) negligent misrepresentation; (8) intentional infliction of emotional distress; (9) violation of Health & Safety Code §§ 123110, 123120; and (10) unfair competition under Bus. & Prof. Code § 17200. This is a medical malpractice case. Bolser alleges that on September 6, 2024, Murrell negligently performed a skin-tag removal and anal rejuvenation procedure on her, causing fecal and gas incontinency and persistent diarrhea.

On May 15, 2026, Bolser filed the complaint.

On August 10, 2026, 436 Beverly Hills filed this demurrer and Motion to Strike. On September 2, 2026, 436 Beverly Hills filed a notice of non-opposition to its demurrer. As of September 9, 2026, the Court has not received opposition to 436 Beverly Hills' demurrer.

On August 17, 2026, Murrell filed a demurrer to the complaint, which is set for hearing on November 19, 2026.

Argument

436 Beverly Hills demurs to Plaintiffs eighth, ninth, and tenth causes of action for IIED, violations of Health & Safety Code §§ 123110 and 123120; and unfair competition. 436 Beverly Hills argues that the Complaint fails to allege "extreme and outrageous" conduct that would state a claim for IIED, that the complaint fails to allege specific statutory pre-requisites to claims under Health & Safety Code §§ 123110 and 123120, and that the complaint does not allege specific unlawful, unfair,

or fraudulent business practices and therefore does not state a claim for violation of the UCL.

Governing Law

Demurrer

In a demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Analysis

Procedure

Meet and Confer

436 Beverly Hills’ counsel sent a meet and confer letter to Plaintiff’s counsel on June 26, 2026, and the parties were unable to resolve the issues informally. (Woods Decl., ¶¶ 3-5.)

Demurrer

Intentional Infliction of Emotional Distress

To state a claim for intentional infliction of emotional distress, a complaint must plead facts showing that the defendant committed some extreme and outrageous act intentionally or with reckless disregard of the possibility of causing the plaintiff distress, and actually and proximately caused plaintiff’s severe emotional distress. (Grenier v. Taylor (2015) 234 Cal.App.4th 471, 486.)

Bolser alleges that 436 Beverly Hills is the surgery center where Murrell performed the skin-tag removal and anal rejuvenation procedure. (Complaint, ¶ 27.) Bolser alleges that Murrell placed unnecessary sutures and otherwise performed a different procedure than the one she understood she would receive, causing her post-operative complications. (Id. at ¶ 35.) This is the conduct Bolser alleges was extreme and outrageous. (Id. at ¶ 112 [“Defendants engaged in extreme and outrageous conduct by allegedly performing or facilitating an intimate internal anorectal procedure outside Plaintiff’s knowing consent, . . .”].) However, none of Bolser’s specific allegations about who or how the procedure was performed are against 436 Beverly Hills. (See ¶¶ 34-36.) Therefore, the complaint fails to state a claim for IIED against 436 Beverly Hills.

436 Beverly Hills' demurrer to Bolser's eighth claim for IIED is SUSTAINED.

Health & Safety Code §§ 123110, 12320

"Any adult patient of a health care provider, . . . shall be entitled to inspect patient records upon presenting to the health care provider a request for those records upon payment of reasonable costs." (Health & Safety Code § 123110 (a).)

"Any patient or representative aggrieved by a violation of Section 123110 may, in addition to any other remedy provided by law, bring an action against the health care provider to enforce the obligations prescribed by Section 1123110. Any judgment rendered in the action may, in the discretion of the court include an award of costs and reasonable attorney fees to the prevailing party." (Health & Safety Code § 123120.)

Bolser alleges that she requested her records from 436 Beverly Hills between November 1, 2024 and 2026, including consultation notes, progress notes, operative reports, anaesthesia records, and more. (Compliant, ¶¶ 118-119.) Bolser alleges that 436 Beverly Hills failed to provide her with complete records. (Id. at ¶ 120.) Bolser's allegations are sufficient to state a claim.

346 Beverly Hills' demurrer to the ninth cause of action for violation of Health & Safety Code § 123110 is OVERRULED.

Business & Profession Code § 17200

There are three types of claims under Bus. & Prof. Code § 17200: claims for unlawful business practices, fraudulent business practices, and unfair business practices. The title of Bolser's tenth cause of action is "unfair competition," but the allegations plead conclusions under all three theories. Under any theory, the complaint must claim some unlawful, fraudulent, or unfair business practice. (People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes, (2006) 139 Cal.App.4th 1006, 1016 ["An 'unlawful' practice requires violation of another statute, and a business practice may be 'unfair' even if not otherwise proscribed by statute as long as the practice is not expressly authorized by law."]; In re Tobacco II Cases, (2009) 46 Cal.4th 298, 328 [a claim for fraudulent business practices must allege individualized reliance on specific misrepresentations or false statements]; Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 187 [unfair conduct is conduct that threatens an incipient violation of an antitrust law or violates the policy or spirit of one of those laws].)

Bolser alleges that "Defendants engaged in unlawful business practices by violating statutory obligations alleged herein, including patient record access obligations under Health and Safety Code section 123110[.]" (Complaint, ¶ 125.) Since the complaint states a claim for violation of that section of the Health and Safety Code, it also claims unlawful conduct. However, Bolser's allegations of fraud are not sufficiently specific, nor are her allegations of unfair conduct sufficiently specific as to 436 Beverly Hills.

346 Beverly Hills' demurrer to the tenth cause of action for violation of the UCL is OVERRULED.

Motion to Strike

436 Beverly Hills moves to strike Bolser's claim for punitive damages to the extent that it exists because, though Bolser's complaint does not claim punitive damages, the civil cover sheet indicates that she claims punitive damages and Bolser's counsel has not confirmed that she is not seeking punitive damages. (Motion to Strike, p. 1.)

Since the Court sustains 436 Beverly Hills' demurrer, the motion to strike is moot.

Conclusion

436 Beverly Hills' demurrer is SUSTAINED as to Bolser's eighth claim for IIED. Leave to amend will be discussed at the hearing. 436 Beverly Hills' demurrer is OVERRULED as to Bolser's ninth and tenth claims.

436 Beverly Hills' Motion to Strike is DENIED as moot.